Model Clinical Investigation Agreement (mCIA)

Instruction Pages

The information set out below provides a checklist of information that needs to be included in the model Clinical Investigation Agreement (mCIA) in preparation for execution by the Parties.

It is the Sponsor's responsibility to provide the required information for review by the Trial Site.

Scope and details of the agreement

This agreement is for use between Sponsors of commercial health and care research, and NHS / HSC organisations which provide secondary or tertiary care acting as Trial Sites in a clinical trial of an investigational medical device, otherwise known as a clinical investigation.

This agreement is suitable for use in both regulated and non-regulated clinical investigations – that is, whether MHRA approval is needed or not.

This Agreement is the bi-partite mCIA with Sponsor and Trial Site as the contracting Parties. The Sponsor can choose to use this Agreement where it has contracted a CRO to perform some activities on its behalf, in which case the CRO will be considered its Agent. Alternatively, if the CRO is to be a Party to the Clinical Trial Agreement, the CRO-mCIA should be used.

This Agreement is not suitable for use:

- when the only use of medical devices is non-interventional, for example in observational or post-market registry studies, or performance evaluations of in vitro diagnostic devices (PEIVDDs or IVDs) – see the model Non-Interventional Study Agreements (mNISAs);
- with NHS / HSC organisations which solely provide primary care services, such as independent contractors of general practice. There is currently no suitable agreement available for use in this situation;
- in clinical trials of investigational medicinal products plus medical devices. There is no suitable agreement available for use in this situation, though we recommend that you use one of the model Clinical Trial Agreements (mCTAs) as the basis for an agreement and add relevant information relating to the investigational medical devices from this Agreement.

You can use this template in situations it is not designed for where there is no alternative model agreement available, however, you do so at your own risk and may need to alter the template accordingly to fit your situation.